

23STCV26122 23STCV26122

County: los-angeles

Division: Civil Law and Motion

Department: 414

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Case Number: 23STCV26122 Hearing Date: August 13, 2026 Dept: 414

23STCV26122

Steve Wallace v. Bruce Marder, et al.

Thursday,

August 13, 2026

[TENTATIVE] ORDER CONTINUING MOTION

TO APPROVE FINAL SETTLEMENT AND DISMISS CASE (9932)

I. BACKGROUND

The

first amended complaint alleges direct claims by Plaintiff and derivative claims on behalf of the entity CAPO, LLC, which is controlled by Defendant, Bruce Marder. The derivative claims are based on Defendants' failure to distribute revenues to members who invested in a new restaurant in Santa Monica.

On

October 3, 2025, the Court granted Defendant PTSF's motion to compel arbitration. The parties jointly move for an order approving the final settlement and to dismiss the case as required in derivative actions.

II. DISCUSSION

Plaintiff's

counsel reports that Plaintiff Steve Wallace passed away on June 12, 2026, and his estate is now handling the litigation. (Supp. Decl of Steven Morris.) An

action for or against a decedent is not lost by reason of that person's death.

(Code

Civ. Proc., § 377.21.) The claims survive subject to the applicable

limitations period. (Code

Civ. Proc., § 377.20.) The court "shall allow a pending action or

proceeding that does not abate to be continued by the decedent's personal

representative or, if none, by the decedent's successor in interest pursuant to

a noticed motion." (Code

Civ. Proc., § 377.31.)

The

person who seeks to continue a pending action or proceeding as the decedent's

successor in interest under this article, shall provide a certified copy of the

decedent's death certificate and shall execute and file an affidavit or a

declaration stating the decedent's name, date, and place of death, that no

proceeding is pending in California for administration of the decedent's

estate, that the proposed successor is decedent's successor-in-interest, and

that no other person has a superior right to continue the decedent's claims. (Code

Civ. Proc., § 377.32.)

III.

CONCLUSION

The

Court continues the hearing to December

4, 2026, at 8:30 a.m., to permit Plaintiff's counsel to move to

appoint a successor in interest, comply with the foregoing statutory

requirements, and to file an amended pleading bearing the name of the real

party in interest.